TELECONTRACT (PVT)LTD

Versus

ECONET WIRELESS (PVT) LTD

And

POSTAL & TELECOMUNICATIONS
REGULATORY AUTHORITY OF
ZIMBABWE

HIGH COURT OF ZIMBABWE
COMMERCIAL DIVISION
CHILIMBE J
HARARE 24 & 28 FEBRUARY 2026

Urgent application

M.A. Ruwitah for applicant
M.Mbuyisa for 1st respondent
No appearance for 2nd respondent

CHILIMBE J

BACKGROUND

[1] I will refer to the parties as "Telecontract" (applicant), "Econet" (first respondent), and "Potraz" (second respondent). Telecontract and Econet are corporate entities registered in terms of Zimbabwe law and are economic players in the telecommunications sector. Potraz is their regulator and was established in terms of the Postal and Telecommunications Act [Chapter 12:05]. ("the PTC Act").

[2] Telecontract and Econet are parties to a 2011 agreement titled Interconnection Agreement (ICA)in terms of which Telecontract maintains an active voice interconnection service with Econet for inbound and outbound call termination. Telecontract approached this court on an urgent basis alleging a unilateral disruption of the interconnection services by Econet in breach of the terms of the ICA. Telecontract thus seeks the following order; -

"THAT Pending the resolution of the dispute between Applicant and First Respondent by the Second Respondent in terms of the Interconnection Agreement, the First Respondent shall:

1.1. remove all unauthorized rate limits imposed on the Applicant's traffic.
1.2. restore full, uninterrupted interconnection services to the Applicant in line with the Interconnection Agreement.
1.3. not impose any further mechanisms that degrade, throttle, or interfere with the Applicant's interconnection services.
2. The First Respondent shall pay the costs of this application."

THE POINT IN LIMINE ON URGENCY

[3] The urgent application was accompanied by a certificate of urgency issued by a legal practitioner- Ms Plaxedes Tavirai. Urgent applications in the Commercial Division are governed by r 40 of the High Court (Commercial Division) Rules, SI 123 of 2020 ('the Commercial Court Rules"). Rule 40 does not require issuance of certificates of urgency[1]-see *Redan Petroleum (Pvt) Ltd T/A Puma Energy v Redan Coupon (Pvt) Ltd* HH 327-22.

[4] The application was opposed by Econet which raised a point *in limine* arguing that the matter was not urgent. Potraz filed a letter resigning its fate to the outcome of the proceedings. Consistent with practice in this jurisdiction, I heard argument from counsel on whether or not the matter was urgent. Before turning to the arguments, I hereunder set out the facts of the dispute.

THE DISPUTE BETWEEN THE PARTIES

[5] Mr Best Macheka, the Systems and Applications Lead, deposed to the founding affidavit on behalf of Telecontract. The ICA, according to Mr Macheka, was intended to facilitate the seamless exchange of voice and data traffic between the two parties` respective networks. In that regard, Telecontract maintained an active voice interconnection service with Econet. He

[1] The certificate of urgency remains a requirement in urgent applications filed in the "General Division" of the High Court in terms of r 60 (4) (b) of the High Court Rules SI 202 of 2021 ("the High Court Rules").

singled out clauses 3.12.2;3.13 and 7.12 of the ICA as material provisions which obliged both parties to take all necessary steps to avoid disruption of service.

[6] The relationship had served both parties well since 2011, stated Mr Macheka.It generated, so claimed the deponent, "material traffic volumes and revenues" for both parties. In fact, the regulator Potraz encouraged such collaboration between telecommunication networks as part of the quest to sustain continuous service for the convenience of consumers.

[7] Matters progressed satisfactorily until 20 January 2026 when, Telecontract experienced a sudden disruption of traffic. Investigations disclosed no fault from Telecontract` s end. Instead all facts pointed to a unilateral termination of traffic by Econet. Following this discovery, Telecontract promptly logged, on 22 January 2026, a fault report- Incident Reference 20260122-00000268 with Econet.

[8] This notification did not, per Mr Macheka, resolve the matter. Thus on 27 January 2026, Telecontract escalated the matter in writing to Econet`s Chief Executive Officer demanding the immediate restoration of full service. This escalation followed the dispute resolution matrix set out in the ICA stated Mr Macheka. As at 10 February 2026, (the date of deposing the affidavit), no response had been received, he claimed.

[9] Telecontract escalated the matter further to Potraz in a letter dated 2 February 2026. Potraz acknowledged the complaint but advised that it would respond substantively only after establishing Econet`s version. Again, as at 10 February 2026, no response had been received from Potraz, stated Mr Macheka.The situation was commercially deleterious and clearly untenable, averred the deponent. Telecontract was in Mr Macheka`s own words "bleeding revenue" through a 17% collapse in volumes, apart from the graver threat of customer attrition. Bereft of an immediate solution, Mr Macheka deposed that Telecontract was compelled to approach this court on an urgent basis seeking an interdict.

[10] Econet disputed the material averments in Mr Macheka`s affidavit. In the opposing affidavit deposed to by its General Manager: Business Assurance Mr Robert Rusike, Econet acknowledged having blocked traffic from Telecontract`s network. But Mr Rusike insisted that such had been done as a matter of necessity. The deponent contended that the blocked

traffic carried all indications of suspicious illicit calls under a strictly prohibited practice known as "refiling". He referred to clause 6.1 of the CLA which expressly condemned such practice as a material breach entitling Econet to summarily terminate the agreement.

[11] Mr Rusike further deposed that the matter was not in any way urgent. The parties had engaged extensively over the issue. Most of the flagged calls had been cleared. In that regard, Mr Rusike argued that Telecontract was not likely to suffer any irreparable harm. On the other hand, Econet was contractually obliged to filter all traffic in order to intercept refiling. Refiling was a fraudulent and illicit practice abhorred by the regulator. In any event, future inconsistencies could be addressed on a case-by-case basis via an engagement model. In that respect, the deponent urged the court to find no urgency in the matter.

THE LAW ON URGENCY.

[12] The above conflicting positions were replicated in the arguments on urgency by counsel from both sides. Before turning to the submissions, I will retrace the key principles in this well-established area of the law. In *Vevhu Resources (Pvt) Ltd v Operation Nehemiah Cooperative* HH 628-23, I had occasion, (after citing the famous passage in *Kuvarega v Registrar-General & Anor* 1998 (1) ZLR 188 H stated at page 193), to traverse the authorities and principles on the point, observing as follows at paragraph *[20]* on page 5; -

> *"[20]* "Urgency" denotes the issues taken into consideration by our courts in determining the order in which litigants access the court or judge`s attention. This access is in turn predicated on the competition or queue by such litigants to secure relief from the courts [2].The key considerations in determining urgency [3] include (i) the conduct or diligence of the applicant[4], (ii) in particular, the causa and relief sought[5] (iii), timing as a general precept[6], (iv) the cause of justice and need to avert

[2] See in particular the dictum of GOWORA J (as she then was) in *Triple C Pigs and Anor* v *Commissioner-General* ZRA 2007 (1) ZLR 27 (H) and the "wheels of justice" expression in *Documents Support Centre*.
[3] In *Mathias Madzivanzira & 2 Ors v Dexprint Investments Private Limited & Anor* HH145-02 it was held that "For a court to deal with a matter on an urgent basis, it must be satisfied of a number of important aspects. The court has laid down guidelines to be followed." (Underlined for emphasis).
[4] CHATIKOBO J`s parting shot in *Kuvarega* was "Those who are diligent will take heed. Forewarned is forearmed". The learned judge also coined the oft-used expression "imminent arrival of day of reckoning" and "doomsday". In *Sibanda v Sibanda & Ors* HH 198-21, the need for applicant to "act promptly" was emphasized.
[5] *Documents Support Center (Pvt) Ltd v Mapuvire* 2006 (2) ZLR 240 (H).
[6] *Documents Support Centre, (supra); Chiwenga v Mubaiwa* SC 86-20 and *Gwarada* v *Johnson* 2009 (2) ZLR 159.

irreparable prejudice[7] as well as (v) the special place of commercial interest (or "commercial urgency") as a source of urgency[7].

[13] Against these considerations, I turn to the arguments presented herein. Mr *Ruwitah*, for Telecontract applied the "time and consequences" test prescribed in *James Mushore v Councillor Mbanga NO & 2 Ors* HH 381-16. Counsel submitted that Telecontract had acted promptly upon ascertaining the nature of the problem. It promptly triggered the engagement process prescribed in the ICA. Drawing no respite from consultations with Econet up to CEO level, Telecontract escalated the matter to Potraz. But again, having received no assurance of an urgent resolution of the matter, it filed the present application.

[14] Mr *Ruwitah* emphasised the peril faced by Telecontract if the court did not intervene with immediacy. The intermittent blockage of its traffic posed a real existential threat to Telecontract. Whilst counsel could not express the prejudice suffered in financial terms, he contended that a 17% loss of traffic carried the further severe prospect of reputational loss and customer attrition.

[15] The arguments from Econet`s counsel Mr *Mbuyisa* (relying on *Mayor Logistics (Pvt) Ltd v Zimra* CCZ 7-14,) distilled into the following legal principles; - firstly that a court could not interdict past conduct. The blocked traffic had since been cleared and thus the matter resolved. No prejudice had befallen Telecontract, he argued. Secondly, the court could not interdict lawful conduct.

[16] Econet had, according to counsel, been compelled to take steps to prevent an illicit practice and was contractually obliged to continue monitoring such traffic. Thirdly and as a corollary, there were indications that Telecontract was complicit in the generation of refiling. It could not seek to benefit from its own misconduct.

ANALYSIS OF THE ARGUMENTS

[17] The question to determine herein is simple; -should this matter be accorded priority to gain the court`s ear ahead of earlier disputes? I will be guided, in addressing this question, by the well-established principles in the authorities cited above. I commence with the first aspect of the "time and consequence test". It is common cause that on 20 January 2026,

[7] *Documents Support Centre; Mathias Madzivanzira & 2 Ors v Dexprint Investments Private Limited & Anor HH145-2002* [7] *Silver's Trucks (Pvt) Ltd & Anor v Director of Customs & Excise 1999 (1) ZLR 490 (H);*

Telecontract's traffic was blocked by Econet. Both parties were gravely concerned over the development although each from a different perspective.

[18] A critical observation is that each party formed the firm conviction that the other was in breach of the terms of the ICA. Having regard to the timeline of events, there is no doubt that Telecontract acted timeously. After taking steps to ascertain the cause of the disruptions, it engaged Econet-right up to the latter`s CEO. Drawing no feasibly solution, Telecontract escalated the matter to the Potraz the regulator. With no firm indication as to when, and what nature of intervention the regulator could issue, Telecontract approached the court. No serious argument can be mounted against Telecontract`s conduct.

[19] As regards the "consequences" I take note of Mr Rusike`s summary in paragraph 19 of his opposing affidavit[8] that; -

> "19. The First Respondent [Econet] `s conduct is lawful and procedural. The Applicant [Telecontract] cannot approach the court on an urgent basis to bypass the **lawful assessment process done by 1st Respondent** in cases **where there is refiling**. To date, the blocked lines have been unblocked meaning there is no need to jump the queue. **What the Applicant ought to do is submit its list and give a commitment that the refiling** (sic). That is all required from the Applicant."[marked in bold for emphasis]

[20] The above excerpt confirms that Econet intends to, and feels justified to sustain the disruptions. On the same point, I note that Mr Rusike's does not unequivocally declare that Econet had specifically concluded that part of Telecontract's blocked traffic constituted disqualified refiling. The matter was receiving further attention to ascertain the nature of the suspicious traffic. The blocked calls though, were subsequently cleared, suggesting that they may not have constituted illicit traffic.

[21] Telecontract has been vehement in its disputation of Econet`s contractual right to disrupt traffic at its sole discretion. An impasse thus developed between the parties as regards interpretation of their respective rights under the ICA. The regulator Potraz is not, as stated, immediately ready to intervene. Telecontract has invited this court to make a ruling based on its perceived contractual rights. The interpretation of the parties` respective rights is a day

[8] Record page 85

two issue for the trial court that will address the matter on the merits. Presently, I am merely required to establish whether the matter may jump the queue.

[22] Which brings me to the question of commercial urgency pleaded by Telecontract. Commercial urgency received attention in the leading decisions of *Silver's Trucks (Pvt) Ltd & Anor v Director of Customs & Excise and Documents Support Center (Pvt) Ltd v Mapuvire* 2006 (2) ZLR 240 (H) (both supra). I had regard to these authorities in Vevhu Resources and commented as follows in paragraphs [31] and [32] at page 8; -

> "[31] What then is the import of this background? In my view, the specific dimension of commercial urgency in commercial disputes requires further reflection. One may recognise that commercial urgency can in fact arise from all sorts of threats. It may arise fortuitously, or be triggered contractually as early-warnings, risk incidents, or events of default. How a party will frame, express, or demonstrate commercial urgency [and the relief sought] will be a matter of causa, style (degree/ detail) and circumstance.
>
> [32] In saying so, I hasten to emphasise that the determination of what constitutes urgency remains a function and responsibility of the court. Naturally, no attempt whatsoever must be made to subvert or limit the established principles that guide the courts in the exercise of that function. Neither is it being suggested here that commercial disputes will only become urgent if characterised exclusively by commercial urgency. Nor that commercial urgency is endemic to commercial disputes."

[23] Returning to the present dispute, I take into account the submissions by Mr *Ruwitah* on the perils faced by Telecontract arising from threats of, or implementation of blockages. Whilst Telecontract could have been more elaborate in presenting the commercial urgency, I am satisfied that a proper case for urgency has been made.

DISPOSITION

[24] The point *in limine* fails. The matter is ruled as urgent and must therefore be accorded appropriate prioritisation. I will reserve the question of costs for resolution in the main matter. Accordingly, it is hereby ordered that; -

1. The first respondent`s point *in limine* on urgency be and is hereby disallowed.

2. The applicant`s prayer that matter be heard on an urgent basis be and is hereby granted.
3. The Registrar is directed to move the present case onto the roll of urgent matters.
4. That costs are reserved for the main matter.

Coghlan, Welsh and Guest-applicant`s legal practitioners
Mtetwa and Nyambirai-first respondent`s legal practitioners.

[CHILIMBE J___27/2/26]